

channel by which it may reach the hands of the vendor, and the vendor by his agent delivers a receipt for it to the purchaser, the vendor cannot afterwards throw the loss of the money on the purchaser (*f*).

66. **Deposit money.**—When trustees sell by auction, the *auctioneer* is their agent, and the trustees will be answerable if they improperly trusted him, or be guilty of any unnecessary delay in recovering the deposit from him (*g*).

67. **Trustees bound to answer inquiries.**—Trustees for sale for *payment for debts* are of course bound at any time to answer inquiries by the author of the trust, or the persons claiming under him, as to what estates have been sold and what debts have been paid (*h*).

[*449] * 68. **Custody of vouchers.**—When the affairs of the trust have been finally settled, the trustees will be entitled to the possession of the *vouchers* as their discharge to the *cestuis que trust*; but the *cestuis que trust* will have a right to the inspection of them (*a*); but not to copies without paying for them.

69. **Land discharged when money raised.**—The *land* is discharged so soon as the fund has been actually raised, even though the proceeds may be misapplied, and do not reach their proper destination. The remedy of the parties aggrieved is against the trustees personally, without any *lien* upon the estate (*b*). And if a legacy be charged on land (either by the creation of a term or without a term), on the *insufficiency of the personal estate*, and the personal estate was originally sufficient, but becomes insufficient by the *devastavit* of the executor, the land is discharged (*c*) unless the devisees of the land are also the persons by whose default the insufficiency arose (*d*).

(*f*) *West v. Jones*, 1 Sim. N. S. 205.

(*g*) See *Edmonds v. Peake*, 7 Beav. 239.

(*h*) *Clarke v. Earl of Ormonde*, Jac. 120, *per* Lord Eldon.

(*a*) *Ib. per eundem*.

(*b*) *Anon.* 1 Salk. 153; *Juxon v. Brian*, Pr. Ch. 143; *Carter v. Barnardiston*, 1 P. W. 505; see 518; *Hutchinson v. Massareene*, 2 B. & B.

49; and see *Omerod v. Hardman*, 5 Ves. 736; *Dunch v. Kent*, 1 Vern. 260; *Culpepper v. Aston*, 2 Ch. Ca. 115; *Harrison v. Cage*, 2 Vern. 85; *Hepworth v. Hill*, 30 Beav. 476.

(*c*) *Richardson v. Morton*, 13 L. R. Eq. 123. But see *contra, Re Massey*, 14 Ir. Rep. 355.

(*d*) *Humble v. Humble*, 2 Jur. 696; *Howard v. Chaffers*, 2 Dr. & Sm. 236.